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REENGINEER INDIA'S IPR FRAMEWORK

India must create a proactive, sector-driven IP governance model, converting IP from a defensive shield into a catalyst for industrial transformation

► **ACHIEVING THE GOVERNMENT'S** goal of transforming India into a developed nation by 2047 hinges critically on increasing the share of manufacturing and service-providing industries in GDP. This necessitates comprehensive, yet meticulously specific, reforms to the intellectual property (IP) regime.

Historically calibrated for access to essentials like medicines and food, the IP framework must evolve into a strategic engine for innovation-led growth across high-tech sectors. Key to this is fulfilling two non-negotiable conditions: jettisoning “one-size-fits-all” reforms for nuanced, technology-specific rules that acknowledge industry differences (eg., semiconductors versus pharma); and striking a trade-off between IP strength to attract multinational capital/expertise and flexibility to cultivate domestic capabilities and self-reliance.

India must create a proactive, sector-driven IP governance model. This approach is indispensable for converting IP from a defensive shield into a catalyst for industrial transformation and

global competitiveness.

In pharma, India's leadership in generics must evolve towards novel drug discovery. While retaining crucial safeguards like Section 3(d) of the Patents Act to prevent frivolous evergreening, significant enhancements are needed. This involves refining patentability criteria and upgrading the expertise of examiners in complex chemistry and biotechnology to ensure rigorous yet predictable assessments.

However, the potential for marginally extended market exclusivity for breakthrough drugs necessitates vigilant price monitoring and a robust, readily deployable compulsory licensing framework to safeguard access to essential medicines, alongside managing initial adaptation challenges for the generic sector.

For telecom, the transition from assembly-led manufacturing to deep-tech innovation requires modernising design protection and resolving the chronic uncertainty around Standard Essential Patents (SEPs). Explicitly extending the Designs Act to cover graphical user interfaces, icons, and the evolving aesthetics of wearable tech and IoT devices is imperative. Crucially, India must establish a transparent